

§ 307.2. Appearance ticket procedures. 1. If a child fails to appear on the return date specified on a family court appearance ticket, the probation service may refer the matter forthwith to the appropriate presentment agency or may, in its discretion, attempt to secure the attendance of the child. Upon exercise of its discretion, probation services shall take appropriate action under law including, but not limited to, written notification to the child and parent or other person legally responsible for his care or telephone communications with the child and parent or other person legally responsible for his care. Efforts to secure the attendance of the child shall not extend beyond seven days subsequent to such return date and the probation service must refer the matter to the appropriate presentment agency within such period. Upon referral, the presentment agency may take whatever action it deems appropriate, including the filing of a petition pursuant to section 311.1.

2. If the complainant fails to appear on the return date specified on such appearance ticket, the probation service may, in its discretion, attempt to secure his voluntary attendance. Upon exercise of its discretion, probation services may take appropriate action under law including, but not limited to, written notification to the complainant or telephone communications with the complainant. Efforts to secure the voluntary attendance of such person shall not extend beyond seven days subsequent to such return date and the probation service shall refer the matter to the appropriate presentment agency within such period. Upon referral, the presentment agency may take whatever action it deems appropriate, including the issuance of a subpoena or the filing of a petition pursuant to section 311.1.

3. If a petition is filed subsequent to the issuance of an appearance ticket the appearance ticket shall be made part of the probation service file.